

22STCV26124 22STCV26124

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-10

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Case Number: 22STCV26124 Hearing Date: August 10, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Donald E. Reith

, et al.;

Plaintiffs,

vs.

Robert McGlew Jr.

, et al.,

Defendants.

Case No.:

22STCV26124

Hearing Date:

August 10, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTION

(1) TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT and (2) to quash service of summons

MOVING PARTY: Defendant Avrohom Light

RESPONDING

PARTY: Plaintiffs Donald E. Reith and
Midwest Construction, LLC

Motion (1) to Set

Aside Default and Default Judgment and (2) to Quash Service of Summons

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

EVIDENTIARY

OBJECTIONS

The court does
not address the objections to the evidence submitted in support of the
opposition to this motion, because the items to which those objections are
asserted are not material to the court's ruling.

REQUESTS FOR JUDICIAL NOTICE

The court
declines to rule on the requests for judicial notice accompanying this motion
because they are not material to the court's ruling. (Gbur v. Cohen (1979) 93 Cal.App.3d 296, 301 ("[J]udicial notice . . . is always confined to those matters which are relevant to the issue at hand."].)

DISCUSSION

Specially

appearing defendant Avrohom Light ("Defendant") moves (1) to set aside the default and default judgment entered in favor of plaintiffs Donald E. Reith and Midwest Construction, LLC ("Plaintiffs") and against Defendant as void pursuant to Code of Civil Procedure section 473, subdivision (d), and (2) to quash service of summons on Defendant pursuant to Code of Civil Procedure section 418.10.

The court finds

that Defendant has met his burden to show that the default and default judgment should be set aside as void under Code of Civil Procedure section 473, subdivision (d).

"The court . . .

may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).) A default judgment "entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444; see also Code Civ. Proc., § 415.20, subd. (b) [permitting service at a person's dwelling, residence, or place of business].)

Defendant states

that the default judgment is void because Defendant did not use the address at which substituted service was made as his residence, place of business, or mailing address, such that substituted service was invalid. (Light Decl. ¶ 3.) Defendant's categorical denial is sufficient to rebut the presumption of valid service created by Plaintiffs' Proof of Service filed October 14, 2022. (Evid. Code, § 647.) Plaintiffs' attack on Defendant's credibility in other matters is not evidence contradicting his sworn statements under penalty of perjury. The court therefore must set aside this default judgment as void under Code of Civil Procedure section 473, subdivision (d).

For

the same reasons discussed above, the court also grants Defendant's motion to quash service of summons on the ground of lack of jurisdiction of the court over him. (Code Civ. Proc., § 418.10, subd. (a)(1).)

ORDER

The court GRANTS

defendant Avrohom Light's motion (1) to set aside default and default judgment as void, and (2) motion to quash service of summons on Defendant.

The court orders

that (1) the default of defendant Avrohom Light entered on October 26, 2022, and the default judgment entered against defendant Avrohom Light on June 26, 2023, are set aside, and (2) service of summons on defendant Avrohom Light as stated in the proof of service filed on October 14, 2022, is quashed.

The court sets a

Case Management Conference in this action on November 3, 2026, at 8:30 a.m.

The court orders defendant

Avrohom Light to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 10, 2026

Robert B. Broadbelt III

Judge of the Superior Court